

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUCIA WATERMAN,

Petitioner

VS.

MATTHEW CHARLES,

Respondent

) Case Number: FPT-25-378598

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER ATTORNEYS FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Lucia Waterman (Mother) and Respondent Matthew Charles (Father). They share one minor child: Lyla (DOB: 9/23/22).
- 2) At the 8/21/25 hearing, the Court awarded Father \$45,000 in attorney's fees and costs under Family Code section 7605.
- 3) On 3/20/26, Father filed a Request for Order seeking \$50,000 in attorney's fees and costs under Family Code section 7605.
- 4) On 3/20/26, Father filed an Income and Expense Declaration.
- 5) On 3/20/26, Father filed an attorney declaration substantiating his request for \$50,000 for prospective and anticipated attorney fees and costs to cure loans used to satisfy attorney fees and costs already incurred, which states Father has paid \$110,425 in attorney fees and costs to date.
- 6) On 4/1/26, Father filed a Substitution of Attorney indicating he is now self-representing.
- 7) On 4/9/26, the matter was continued from 5/28/26 to 6/9/26 by agreement of the parties.

- 1 8) On 5/27/26, Mother filed a Responsive Declaration in opposition to Father's Request for Order.
2 Mother asserts that Father's request completely disregards the Court's 8/21/25 ruling. Mother
3 further asserts that Father's attorney declaration lacks specificity as to what work was performed,
4 when that work was performed, and what ongoing work is anticipated. Mother states that counsel
5 for Father has since substituted out, so Father no longer has attorney's fees to pay.
6 9) On 5/27/26, Mother filed an Income and Expense Declaration.

7 **B. Findings and Order**

- 8 1) Father's request for an additional \$50,000 in attorney's fees and costs under Family Code section
9 7605 is DENIED.
10 2) While the Court previously made a finding (at the prior 8/21/25 hearing) that there is a significant
11 disparity in income and access to funds to pay attorney's fees between the parties, the Court also
12 awarded Father \$45,000 in attorney's and costs to be applied to all fees incurred to date as well as
13 all fees incurred through and including the 1/13/25 hearing.
14 3) Per Father's Income and Expense Declaration filed 3/20/26, Father paid \$110,425 in total
15 attorney's fees and costs (from the attorney's fee award set forth above and using his parents as a
16 source of funds) and still owes \$0.
17 4) Thereafter (on 4/1/26), Father filed a Substitution of Attorney indicating he is now self-
18 representing.
19 5) The Court recognizes that pro per litigants who lack the financial ability to hire an attorney may
20 request a reasonable amount of attorney's fees and costs to retain counsel under Family Code
21 section 7605; however, Father did not request attorney's fees and costs for that purpose.
22 6) The Court will prepare the Findings and Order After Hearing.
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